

## 25NWCV01297 25NWCV01297

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-07-30

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#14

INIGUEZ v. CVS PHARMACY, INC, ET AL.

CASE

NO.: 25NWCV01297

HEARING: Thursday, July 30, 2026, at 9:30 AM

I.

Defendant GARFIELD BEACH CVS's Motion to Deem

Requests for Admission, Set One Admitted against Plaintiff MIGUEL CERVANTES

INIGUEZ is GRANTED.

II.

Defendant GARFIELD BEACH CVS's Motion to Compel Plaintiff

MIGUEL CERVANTES INIGUEZ's Response to Form Interrogatories, Set Two is GRANTED.

Moving

Party to give Notice.

Background

Defendant

GARFIELD BEACH CVS.

("Defendant") moves to: Compel Plaintiff CERVANTES INIGUEZ's Response to Form Interrogatories, Set Two. Defendant also moves to Deem Requests for Admissions Set One admitted against Plaintiff.

Legal  
Standard

"If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply: (a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.... The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance.... (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." (CCP §2030.290.)

If a party to whom interrogatories and document demands are directed fails to respond at all, the propounding party's remedy is to seek a court order compelling answers thereto. (CCP §§ 2030.290, 2031.300.) All that needs to be shown is that the discovery was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. The moving party is not required to show a reasonable and good faith attempt to resolve the matter informally before filing this motion. A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (See *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.)

On December 19, 2025, Defendant propounded onto Plaintiff the following discovery: Form Interrogatories, Set Two and Requests for Admissions, Set One.

Plaintiff's responses were due on January 18, 2026. Plaintiff failed to provide a response.

Therefore, Defendant's Motions are GRANTED, and Plaintiff MIGUEL

CERVANTES INIGUEZ is ORDERED to provide verified responses, without objection by no later than 30 days from date of the Court's issuance of this Order. Defendant's Requests for Admissions Set One is Deemed Admitted.

This date may be extended by stipulation of the parties. If any objections are asserted, it will be tantamount to no response at all and will be deemed a violation of this Court's order.

Reasonable sanctions are GRANTED in the total amount of \$500.00. Plaintiff MIGUEL CERVANTES INIGUEZ is ORDERED to pay Moving Party and their counsel of record sanctions in the total amount of \$500.00, payable within 60 days from the date of the Court's issuance of this Order.